



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
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cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-116 / Highlands – Future Land Use Map Amendment
Date: June 8, 2026

Background:

The item for consideration is a Future Land Use Map Amendment (or Comprehensive Plan Amendment). This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral June 8, 2026
- Public Services Committee June 15, 2026
- Final Consideration July 13, 2026

Planning Commission Recommendation:

The Planning Commission heard this item at their June 1, 2026, meeting and voted 3-2 against the amendment. Wyoming State Statute requires a majority of the Commission (not just those present) to vote in favor for a recommendation of approval. This requires four 'yes' votes. Approval of this motion was essential for the associated zone change, and the Planning Commission used this to influence their recommendation on the associated zone change (see the zone change staff report for more information on that item). A Resolution overruling the Planning Commission's disapproval is required and is a separate item on the Council agenda.

At the Public Services Committee meeting on June 15, 2026, Staff will request that this item be postponed until the July 13, 2026 City Council meeting to line up with the annexation and zoning map amendment. The reason for introducing this item early is so that all items related to the Highlands development can be discussed at the same time.

The Planning Commission Staff report is attached and unchanged.

County Commissioner Comment:

The amendment procedures in PlanCheyenne require proposed amendments entirely within City limits (or going to be within City Limits upon final consideration) to go to the County Commissioners for comment only. The County Commissioners heard this item at their meeting on June 2, 2026 and had no comments or questions.

Public Comment

Between the publication of the Planning Commission Staff Report and the publication of this memo (June 3, 2026), Staff has received no new inquiries or comments from the public on this project. The project page on the website has received 77 views and no comments.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AMENDING THE FUTURE LAND USE MAP OF PLANCHEYENNE CHANGING THE LAND USE DESIGNATION FROM AGRICULTURAL/RURAL AND URBAN RESIDENTIAL TO MIXED-USE EMPLOYMENT AND AMENDING THE URBAN SERVICE BOUNDARY FOR PROPERTY GENERALLY LOCATED EAST OF SOUTH GREELEY HIGHWAY AND SOUTH OF THE SWEETGRASS SUBDIVISION."

WHEREAS, *PlanCheyenne*, as amended by *PlanCheyenne: Reflections and Progress* adopted by the Governing Body of the City of Cheyenne by Resolution No. 5573, is the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County adopted by both the Governing Body of the City of Cheyenne and Laramie County Board of County Commissioners;

WHEREAS, the intent of the Future Land Use plan is not to predetermine specific land uses for individual parcels or specific locations for uses or facilities, but to provide a general framework for neighborhoods and activity centers organized around roadway networks and major parks and open space;

WHEREAS, Brad Emmons of AVI, PC, a resident within Cheyenne, has initiated an amendment to the Future Land Use map to amend the Urban Service Boundary shown in Exhibit A which is attached hereto and incorporated herein and to amend the land use category from Agricultural/Rural and Urban Residential to Mixed-use Employment for land described as:

A PARCEL OF LAND LOCATED IN A PORTION OF SECTIONS 13, 14, 22, 23, 24, 26, AND 27, TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, STATE OF WYOMING.

WHEREAS, Plan Amendments approved by the Governing Body pursuant to the criteria set forth on Page 18 of *PlanCheyenne*, as amended;

WHEREAS, the Laramie County Board of County Commissioners reviewed the proposed future land use map amendment and were given the opportunity to make comments;

WHEREAS, a public hearing to receive public input and comments on the proposed Future Land Use map amendment for the above-described property was held before the City of Cheyenne Planning Commission on June 1, 2026; and

WHEREAS, Plan Amendment processes and procedures required by *PlanCheyenne*, as amended, have been followed with regard to the request by Brad Emmons to amend the Future Land Use map category for the above-described property and amend the Urban Service Boundary.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne Governing Body hereby amends the Land Use Plan for *PlanCheyenne* changing the land use category from Agricultural/Rural and

Urban Residential to Mixed-use Employment, and amends the Urban Service Boundary, as shown in Exhibit A, in accordance with the procedures outlined in *PlanCheyenne* and Wyoming Statutes § 15-1-503 and § 15-1-505;

BE IT FURTHER RESOLVED, that staff is authorized to amend affected maps of *PlanCheyenne* to reflect the aforementioned changes; and

BE IT FURTHER RESOLVED, that this resolution shall become effective after its passage, approval, and signing by the Mayor.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2026.

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION

JUNE 1, 2026

STAFF REPORT

FILE:

PUDC-26-116: Future Land Use Plan Amendment adding land to the Urban Service Boundary and changing the land from Agricultural/Rural to Mixed-use Employment.

REQUEST:

A request to amend the Future Land Use Plan, adding land to the Urban Service Boundary and changing the land from Agricultural/Rural to Mixed-use Employment.

LOCATION:

East of South Greeley Highway and south of the Sweetgrass Development.

APPLICANT:

Brad Emmons, AVI P.C.

OWNER:

ARP and Hammond Hardware CO, Old Horse Pasture Inc., and Lummis Livestock Company LLC

ZONING:

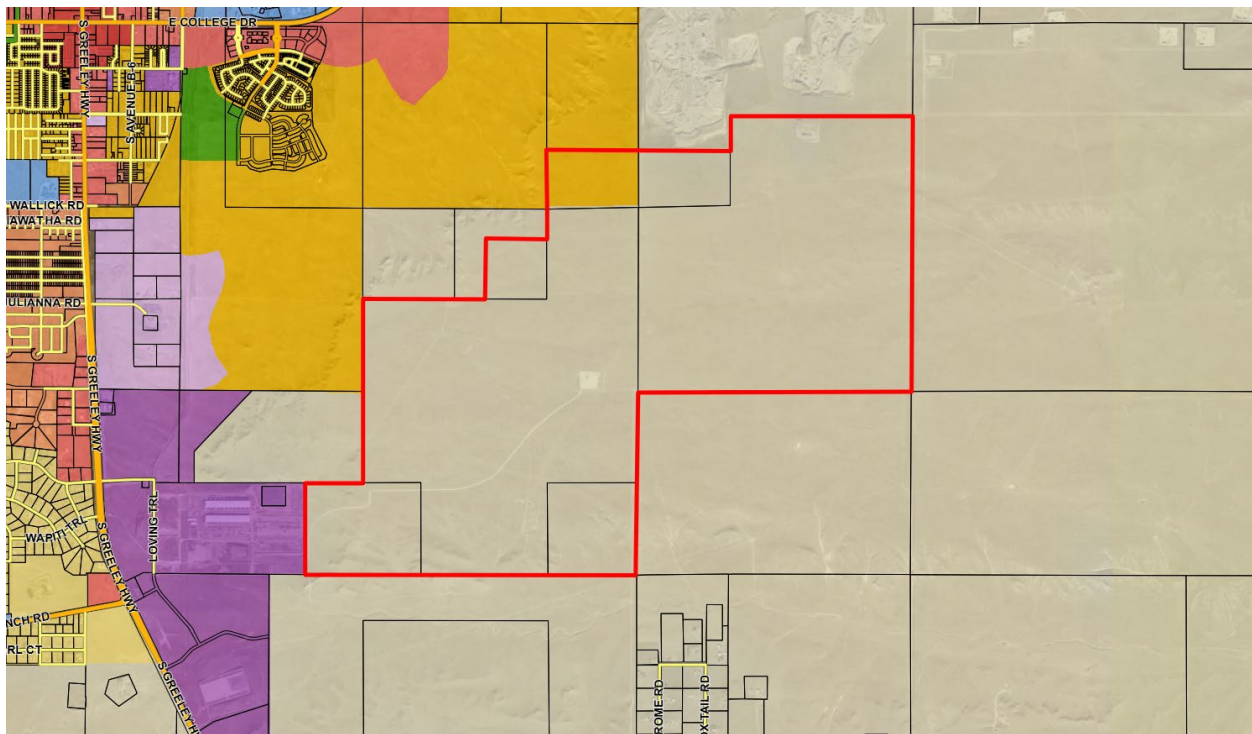
County LU, proposed rezoning to BP – Business Park following annexation.

PURPOSE:

To match a requested annexation and zone change to BP - Business Park for development of the property.

PREPARED BY:

Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Resolution amending the Future Land Use Plan for roughly 3,238.8 acres of land east of South Greeley Highway and south of the Sweetgrass Development as shown in the Future Land Use Map provided, adding land to the Urban Service Boundary and changing the land from Agricultural/Rural to Mixed-use Employment.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne (2014 Community Plan)

BACKGROUND:

The applicant is requesting amending the Future Land Use Map for roughly 3,238.8 acres of land to Mixed-use Employment to accommodate a zone change to the BP – Business Park zone. A portion of the land within this amendment is already annexed and is currently zoned BP. Another portion that is already annexed is zoned Sweetgrass PUD and currently designated 'Urban Residential' by the comprehensive plan.

Most of this area is outside the Urban Services Boundary and has a Future Land Use Map designation of Agricultural/Rural. This area is proposed to be added to the Urban Services Boundary and changed to Mixed-use Employment.

A concurrent application for a zoning map amendment has been submitted. The zoning map amendment will accompany the future land use amendment at City Council. If the application for the zoning map amendment is approved, the applicant will be required to submit a site plan application for any new development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Agricultural/Rural and Urban Residential	County LU – Land Use and BP – Business Park	Vacant
North	Urban Residential and Agricultural/Rural	PUD – Sweetgrass Planned Unit Development and County LU – Land Use	Vacant and a Quarry
South	Agricultural/Rural	County LU – Land Use	Vacant and Single-family Residential
East	Agricultural/Rural	County LU – Land Use	Vacant and Oil Fields
West	Industrial	BP – Business Park	Vacant and a Data Center

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve an amendment to the Future Land Use Map of the Comprehensive Plan, the Commission must make the following considerations outlined in the 2014 Community Plan (page 18). A detailed analysis is below:

1) BENEFICIAL OR ADDRESSES ISSUES - The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.

The proposed amendment to Mixed-use Employment at the proposed location would be beneficial as it is on the very edge of the community. Mixed-use Employment areas should be located toward the fringe of the community and in areas that are not highly residential as they allow for more industrial and business park type developments. This area is mostly vacant or has industrial uses nearby. There is a small single-family neighborhood to the south that contains about 17 residences. The closest home is about 2,200 feet to the corner of the proposed area.

When the 2014 amendment was adopted, it was not known that the subject property had the potential for industrial development. However, the market and property owners noted the prime location of the subject property on the periphery of the community. The development at this location warrants an extension of the Urban Services Boundary and amendment to the Natural and Cultural Resources area contained in the Plan. This amendment will facilitate further development in South Cheyenne and further several economic development goals contained within PlanCheyenne.

The small portion currently designated Urban Residential is across the ridgeline from the rest of the development area and topographically speaking, it makes sense for this area to match the designation that appears on the side of the ridge it is on.

The proposed Future Land Use amendment **complies** with review criteria 1.

2) COMPATIBLY - The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.

The subject property is located in an area that is largely undeveloped. The subject property is adjacent to Industrial to west, Agricultural/Rural to the south and east, and Urban Residential to the north. The Agricultural/Rural would not allow for commercial or industrial type uses. Due to its isolated nature, the subject property is suitable for industrial development, noting the impacts of the industrial development will be minimal to the largely vacant surrounding properties. The proposed amendment is consistent with the goals and policies of PlanCheyenne, as discussed in more detail below.

The proposed Future Land Use amendment **complies** with review criteria 2.

3) IMPACT MITIGATION - The proposed amendment will address and mitigate impacts on transportation, services, and facilities.

Transportation:

The transportation network in this area of the City is largely undeveloped with the exception of Bison Business Park to the west. As the property develops, the property owners and developers will be required to dedicate adequate right-of-way to service the area and mitigate the development's impact on existing rights-of-way. Furthermore, the proposed development will be required to build any rights-of-way as required by the City Engineer through the platting process.

Services:

The proposed change will require coordination with the Board of Public Utilities and Fire Department through the platting and site plan process. The proposed development will be required to meet the standards of these reviewing departments and agencies.

Facilities:

The proposed change may require additional facilities as determined by the platting or site plan processes. These changes will be addressed at these phases of the development process.

The proposed Future Land Use amendment **complies** with review criteria 3.

4) SERVICE PROVISION - The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision

A majority of this land is currently proposed to be annexed into City limits and urban facilities and services are available to the subject property. Water and Sewer would need to be extended from the west or the north. The future land use map amendment is proposing an amendment to the currently adopted Urban Services Boundary.

The proposed Future Land Use amendment **complies** with review criteria 4.

5) ANNEXATION - The proposed amendment does not jeopardize the City's ability to annex the property.

The subject property is currently proposed to be annexed into City limits. Two small portions have already been annexed, one adjacent to Bison Business park, the other as part of the large-scale Sweetgrass PUD.

The proposed Future Land Use amendment **complies** with review criteria 5.

6) URBAN SERVICES AREA - The proposed amendment is consistent with the logical expansion of the Urban Services Area.

The proposed amendment suggests amending the Urban Services Boundary to encompass a majority of the proposed area to be annexed. The expansion of the Urban Services Boundary at this location is logical as it is adjacent to the current Urban Services Boundary and accounts for the continued development in South Cheyenne.

The proposed Future Land Use amendment **complies** with review criteria 6.

7) STRICT ADHERENCE - Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.

Strict adherence to the Plan may result in unintended consequences. While the land could develop with very low density residential (large Lot development generally 10+ acres in size), it is on the edge of the community where providing services for residential development can be more costly and challenging to extend for a residential developer. Alternatively, the area could develop

with large-acre ranchette-style development in the County or Wind energy generation or other energy product facilities.

The current Urban Service Boundary in this area appears to follow topography or parcel boundaries. Strict adherence to the current Urban Service Boundary in this area of the community may be unfairly limiting to land otherwise developable.

The proposed Future Land Use amendment **complies** with review criteria 7.

8) PUBLIC WELFARE AND CONSISTENCY – The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.

Staff is satisfied that the proposed application will not have any adverse effects on public welfare. Furthermore, the application accomplishes the following policies contained within PlanCheyenne:

- **Policy 1.1.B: Flexibility to Respond to Market Demands**
The Future Land Use Plan does not predetermine all land uses on individual parcels and is intended to provide some flexibility for the market to help determine which uses are needed at a given time. However, when evaluating land uses for a proposed development, consider whether a diverse and integrated mix of uses is provided throughout the entire Cheyenne urbanized area.
- **Policy 3.1.B: Recruit New Employers**
Work with partners, such as the Chamber and LEADS, to continue to recruit larger employers that provide family wage jobs and that are predominantly clean, nonpolluting industries.
- **Policy 3.5.A: Locations for Heavy Industrial Uses**
Continue to leverage the Cheyenne Area's unique location and physical assets, such as heavy rail and interstate access, by designating and maintaining areas for heavy industrial uses that may not be suitable within designated activity centers due to design and/or traffic impacts. Such uses may include trucking and distribution facilities, oil and gas support services, and warehousing among others.

The proposed Future Land Use amendment **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

No other plans are applicable for this area.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on May 16, 2026.
- **Posted Notice** Posted notice is not required until May 25, 2026.
- **Internet Posting** on connect.cheyennecity.org on May 15, 2026.

As of the publication of the Staff Report (May 22, 2026), Staff has received no inquiries. There have been no comments made on Connect Cheyenne. The project page on the website has received 26 views.

CONCLUSION:

Staff recommends approval of the extension of the Urban Service Boundary and the Mixed-use Employment Land Use designation for this property because it is located on the edge of the community. A future land use amendment to Mixed-use Employment will support the applicants proposed zoning map amendment and allow for further development.

ALTERNATIVES:

1. Approve the Resolution amending the Land Use Plan as submitted by the applicant and expanded upon by staff (**Staff Recommendation**).
2. Approve the Resolution amending the Land Use Plan subject to modifications.
3. Deny the Resolution to not amend the Land Use Plan. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Resolution until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

In the event that the Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

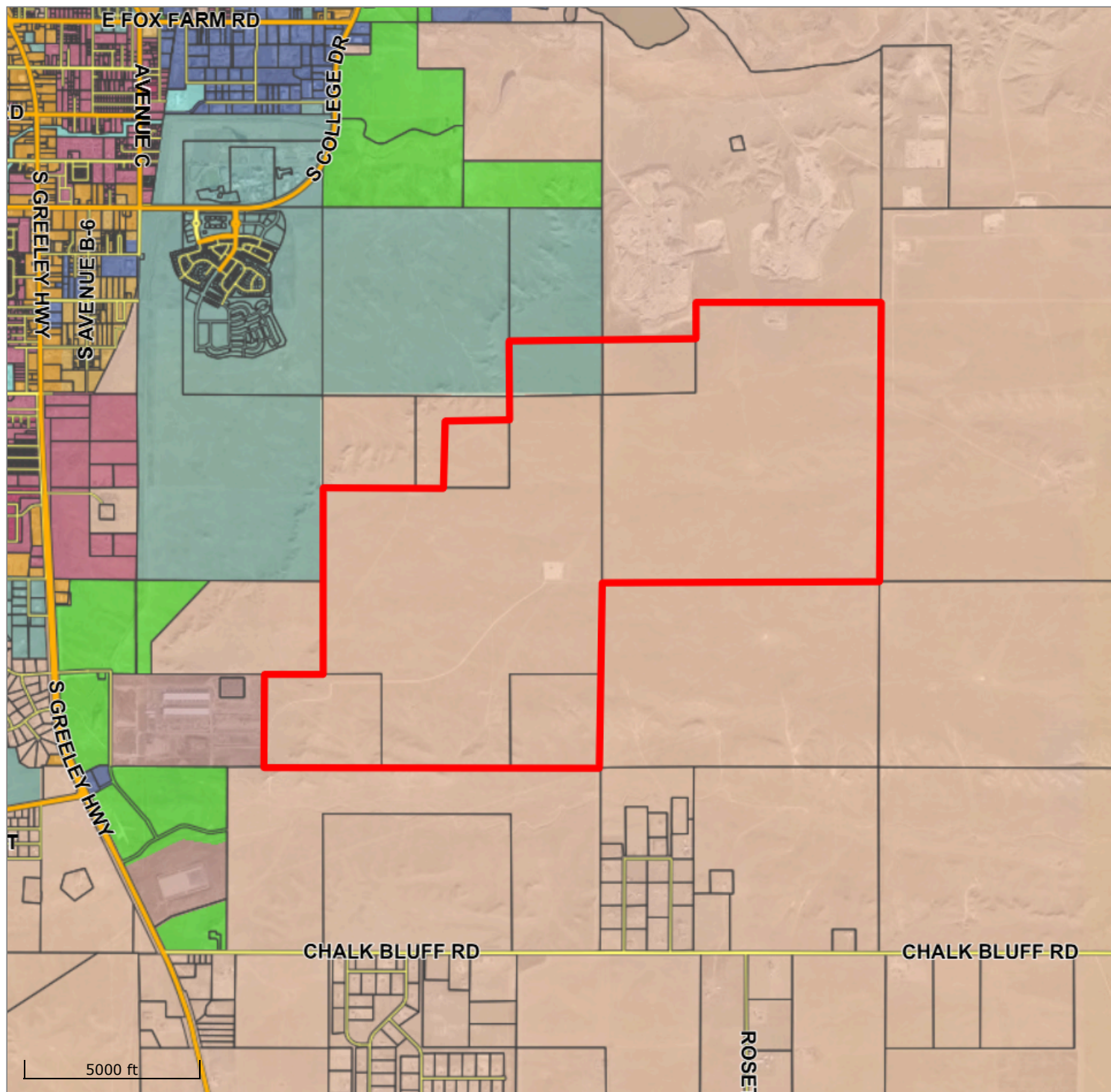
STAFF RECOMMENDATION:

Staff recommends approval of the Resolution amending the Future Land Use Plan for roughly 3,238.8 acres of land east of South Greeley Highway and south of the Sweetgrass Development as shown in the Future Land Use Map provided, adding land to the Urban Service Boundary and changing the land from Agricultural/Rural to Mixed-use Employment.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Application
4. Applicants Future Land Use Map – Area to be amended.

Laramie County Wyoming MapServer

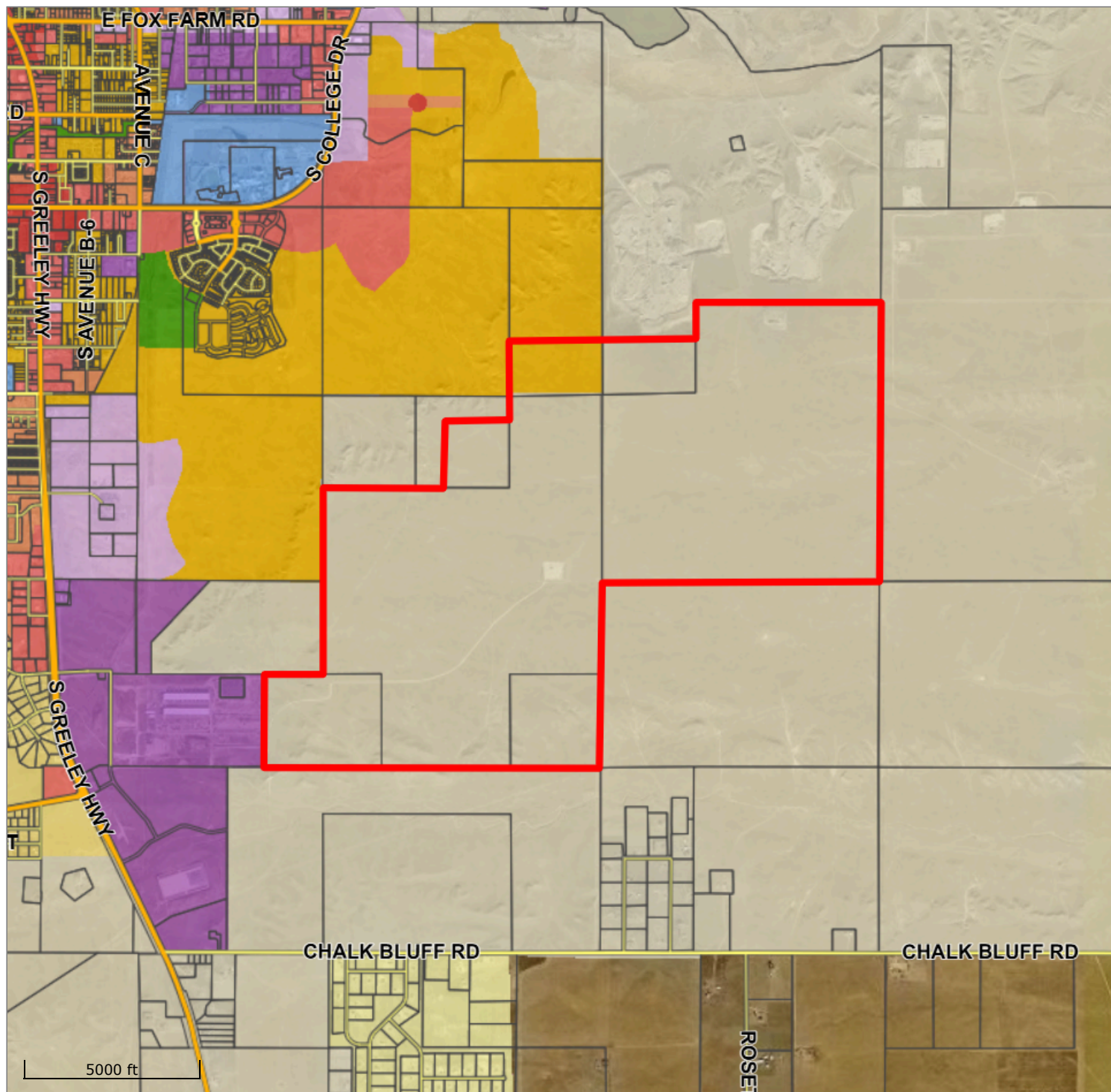


- Interstate
- Major Road
- Imps only
- A-1
- A-2
- AD
- AG
- AR
- CB
- CBD
- HI
- HR
- LI
- LR
- LU
- MR
- MU
- MUB
- MUE
- MUR
- NB
- NR-2
- NR-3
- P
- PUD
- SS
- URLD
- URMD
- URHD
- X



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printed 5/22/2026

Laramie County Wyoming MapServer



- Interstate
- Major Road
- Imps only
- Agricultural/Rural
- Rural Residential
- Urban Transition Residential
- Urban Residential
- Mixed-Use Residential
- Mixed-Use Commercial
- Mixed-Use Employment
- Industrial
- Central Business District
- Community Business
- Public and Quasi-Public
- Military/Federal
- Open Space and Parks



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printed 5/22/2026

Record No: PUDC-26-116

Comprehensive Plan Amendment

Status: Active

Submitted On: 5/8/2026

Primary Location

O E COLLEGE DR
Cheyenne, WY 82007

Owner

ARP AND HAMMOND HARDWARE CO
1825 CAMPSTOOL RD CHEYENNE, WY 82007

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* ?

Highlands Land Use Map

Is this application proposing amending the Future
Land Use Map?*

Yes

Is this application proposing amending the text of
the Plan?*

No

Review Criteria

The following review criteria are found in PlanCheyenne regarding a Comprehensive Plan amendment. Please acknowledge the proposed amendment meets each review criterion by checking the box.

1. The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.*



2. The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.*



3. The proposed amendment will address and mitigate impacts on transportation, services, and facilities.*



4. The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision.*



5. The proposed amendment does not jeopardize the City's ability to annex the property.*



6. The proposed amendment is consistent with the logical expansion of the Urban Services Area.*



7. Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.*



8. The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.*



Certification

A resident of Cheyenne or the plan area of Laramie is required to submit an application for a comprehensive plan amendment.*

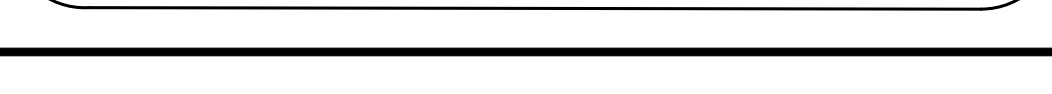
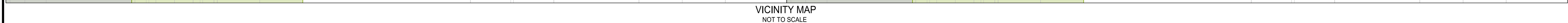
I, the applicant, am a resident of Cheyenne (or the plan area of Laramie County).

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Bradley Emmons

May 8, 2026



Dwg. File: H112_LAR03_Highland Parcel Planning (zoning) 112_FUTURE LAND USE AMENDMENT.dwg Layout: FUTURE LAND USE AMENDMENT Plot: 5/6/20 11:33am
